

25LBCV00515 25LBCV00515

County: los-angeles

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Case Number: 25LBCV00515 Hearing Date: September 24, 2026 Dept: S28

BACKGROUND

On

February 27, 2025, Plaintiff Wilmington-Lomita Boulevard, LLC ("Plaintiff") filed a Complaint alleging causes of action for inverse condemnation and trespassing against Defendants Port of Long Beach aka Long Beach Harbor Department, Long Beach Board of Harbor Commissioners, California Department of Transportation aka CalTrans ("Defendant" or "CalTrans") and R.J. Noble Company.

On September 4, 2026, the Court denied

Defendant's motion to disqualify Mark B.

Simpkins from serving as counsel for Plaintiff.

On

September 17, 2026, the Court granted Plaintiff's ex parte application for a temporary restraining order and set the instant hearing on the motion for preliminary injunction.

On

September 21, 2026, Defendant filed opposition to the preliminary injunction.

As of September 23, 2026, Plaintiff has not filed a reply.

DISCUSSION

Applicable

Law

The purpose of a

preliminary injunction is to preserve the status quo pending a decision on the merits. (*Major v. Miraverde Homeowners Ass'n.* (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (*White v. Davis* (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (*Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (*Savage v. Trammell Crow Co.* (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (CCP § 526(a).)

"The granting or denying of

a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy." (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286; see also *Yee v. American National Ins. Co.* (2015) 235 Cal.App.4th 453, 457-458 ["a preliminary injunction is not a determination on the merits...."].) Furthermore, a preliminary injunction ordinarily cannot take effect unless and until the party applying for it provides an undertaking to the effect that the applicant will pay to the party enjoined such damages as the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction [see CCP § 529(a)]. (*City of South San Francisco v. Cypress Lawn Cemetery Assn.* (1992) 11 Cal.App.4th 916, 920.)

Analysis

Terms of the Preliminary

Restraining Order

The

Complaint seeks damages as a result of Defendant's RJ Noble's use of a 5,000 square foot portion ("the South Parcel") of a vacant parcel leased by Plaintiff from the City of Long Beach for use as a construction staging area. The claims remaining for trial are inverse condemnation against CalTrans and trespass against R.J. Noble Company, arising from CalTrans's direction to its contractor to occupy the South Parcel.

Plaintiff

provides the following facts in support of this preliminary injunction:

CalTrans has announced that within a month it will build a fence along the entire State Route 103 frontage of the two parcels Plaintiff leases from the City of Long Beach, in its words "to stop all access to/from SR 103." It announced this in a letter dated August 19, 2026 that it never served on Plaintiff's counsel. Counsel learned of the letter on September 11, 2026, when he reviewed the exhibits CalTrans proposes to offer at the trial that begins September 28, 2026. Measured from the date of the letter, the work is to begin on or about September 19, 2026-five days before the final status conference and nine days before trial. The openings the fence would close are the only way the North Parcel is reached. They were approved by the City of Long Beach, were required by the City of Long Beach, and exist because the City of Long Beach required and paid for them. The improvement schedule attached to Ground Lease No. 30946 specifies "5-60' wide gate openings-2 North, 2 South, and 1 emergency egress at midway" and a six-foot block wall "running length of property along Route 103," and the City credited their cost against rent. They were built in 2009 and have been used continuously ever since by the crane company that subleases the North Parcel. In the seventeen years since, CalTrans has never served a notice to remove an encroachment, never commenced an abatement action, never denied a permit application, and never identified a collision, a hazard or a complaint. What CalTrans has done instead is concede liability and litigate value. In its September 9, 2026 motion for a court view it told this Court that it "does not contest that a physical taking of the Subject Property occurred" and that "liability is established." In the declaration supporting that motion, its counsel swore-after visiting the property on September 4, 2026 without notice to Plaintiff-that the parcel "is landlocked." Access is therefore not a collateral matter. It is the principal contested fact bearing on the value of what CalTrans admits it took, and it is the fact CalTrans proposes to settle with a fence rather than with evidence. Plaintiff does not

ask this Court to decide who owns the access rights. Plaintiff asks only that the frontage be left as it is until the Court has tried the case. The relief costs CalTrans nothing it has said is urgent: its own letter gave a month's lead time, which is an admission that nothing about the present condition requires immediate correction. Denial, by contrast, would shut down an operating business, end the sole income of the LLC's only member, and destroy the physical condition that both sides-and CalTrans's own pending motion-ask the trier of fact to evaluate."

(Mot.,
pp. 6-7.)

Plaintiff

seeks an order restraining Defendant CalTrans as follows:

1. Restraining CalTrans and its officers, employees, agents, contractors, and all persons acting in concert with or at the direction of any of them, from doing any of the following as to the North Parcel and the South Parcel demised under City of Long Beach Ground Lease No. 30946, as amended:

(a)
installing, constructing, erecting or placing any fence, barrier, guardrail, barricade, K-rail, delineator, curb, berm or other obstruction along, across or within the State Route 103 frontage of either parcel;

(b) closing,
blocking, narrowing, removing, paving over, filling or otherwise obstructing or altering any existing gate, gate opening, driveway, culvert, ditch crossing or other means by which either parcel is presently reached from State Route 103;
and

(c)
otherwise altering the physical condition of the frontage of either parcel, including the block wall, the chain link fencing, the truck run-off area, the ground surface and the drainage ditch and its crossings.

2. An order fixing the undertaking required by Code of Civil Procedure section 529, subdivision (a), in a nominal amount, on the ground that the order restrains nothing but the postponement for a matter of weeks of a

condition CalTrans has tolerated since 2009 and identifies no cost that the delay would impose.

3. In the alternative, if the Court declines to restrain the work, an order (i) precluding CalTrans from offering at trial any evidence, testimony, opinion or argument concerning the condition of the frontage as altered after August 19, 2026, including any contention that either parcel is landlocked, and (ii) denying CalTrans's pending motion for a court view under Code of Civil Procedure section 651.

(Ex
Parte Application, pp. 3-4.)

Likelihood of Success on the
Merits

Inverse

condemnation requires the following: (1) Plaintiff owned the real property; (2) the property was taken or damaged; (3) the cause was a public project; and (4) damage to private property substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. (Cal. State Automobile Assn. v. City of Palo Alto (2006) 138 Cal.App.4th 474, 480, disapproved on other grounds by City of Oroville v. Superior Court (2019) 7 Cal.5th 1091, 1105 [rejecting simple causation, and replacing with above-stated causation element].)

Plaintiff

states that it has a reasonable probability of prevailing on the merits, but does not clearly argue the elements of inverse condemnation in its papers. Instead, Plaintiff largely recites facts giving rise to the injunction request (blocking the proposed new fencing on the North Parcel) rather than connecting the facts in the Complaint, that are germane to the underlying action, to the claim of inverse condemnation of the South Parcel. However, in the interests of justice, the Court gives a generous reading to Plaintiff's facts that may go to specific elements of inverse condemnation.

As

to the first element that Plaintiff owned real property, Plaintiff contends that it owns the subject property after the State relinquished the segment in 2000 and the instrument reserved nothing. As to the second element that the

property was taken or damaged, Plaintiff contends that CalTrans has conceded liability as to taking and now only litigates value, based on the following: "In its September 9, 2026 motion for a court view, CalTrans told this Court that it 'does not contest that a physical taking of the Subject Property occurred' and that 'liability is established.' In the declaration supporting that motion, its counsel swore-after visiting the property on September 4, 2026 without notice to Plaintiff-that the parcel 'is landlocked.' " (Ex Parte Application, p. 6.)

As

to the third element that the cause of the taking was a public project and the fourth element that the taking giving rise to the Complaint caused damages, Plaintiff makes no clear argument.

Here,

Plaintiff fails to carry its burden to establish a likelihood of success on the merits against CalTrans. Plaintiff does not clearly identify the original taking, makes no connection between the taking and a public project, and does not discuss damages arising from the taking that is the subject of the Complaint. It is Plaintiff's burden to show a reasonable probability of prevailing on inverse condemnation, and the Court cannot look back at the Complaint to piece together these elements for itself. In seeking to establish a likelihood of success on the merits, Plaintiff largely discusses the new proposed fencing, rather than the originally alleged taking of the South Parcel giving rise to this Action. The purpose of this element of the preliminary injunction analysis is to show a likelihood of success on the merits of the inverse condemnation claim, not on the injunction request itself.

Overall,

Plaintiff fails to carry its burden to establish a likelihood of success on the merits.

Balance of Harms

For

the second factor, the court must consider "the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) "Irreparable harm" generally means that the defendant's act constitutes an actual or threatened injury to the personal or

property rights of the plaintiff that cannot be compensated by a damages award. (See *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.)

Plaintiff

argues that without court intervention, if the fence goes up, "the Court will try the value of the leasehold as of 2024 while looking at a property that CalTrans reconfigured nine days before trial, and will do so on CalTrans's own motion to go look at it." (Ex Parte Application, p. 15.) Plaintiff contends that "the alteration announced here would be deliberate and would follow a written preservation demand. An evidentiary inference, however, is a poor substitute for the evidence itself, which is why Plaintiff asks that the condition be preserved rather than that its destruction be penalized." (Ibid.)

Plaintiff

further argues that sealing the North Parcel's frontage, which is an operating crane yard, "would strand the equipment inside it, halt the subtenant's business, and end the rent that is the sole income of Plaintiff's only member, the widow of the member who founded the company." (Simpkins Decl., 2, 3 & 7.) Plaintiff contends that interference with the possession and use of a specific parcel of real property is not the kind of injury for which money is an adequate substitute, and section 526, subdivision (a)(2) is written in exactly those terms: "waste, or great or irreparable injury."

Here,

Plaintiff has failed to establish that it would suffer irreparable harm should the preliminary injunction not issue. As an initial matter, Plaintiff asks this Court to interfere with CalTrans's use of the North Parcel, which is not the subject of the Complaint and is thus beyond the scope of this action. Further, Plaintiff fails to establish an inadequate remedy at law, stating that the proposed fencing would "strand the equipment inside it, halt the subtenant's business, and end the rent that is the sole income of Plaintiff's only member." Monetary damages alone would address Plaintiff's concerns about loss of rent due to an interruption of the subtenant's business in the North Parcel. (CCP § 526(a).)

In

opposition, CalTrans establishes that the balance of harms weighs in its favor. CalTrans asserts that Plaintiff is not landlocked as it possesses the physical capability to construct a lawful alternative entrance elsewhere, such as Willow

Street. Most importantly, CalTrans highlights that the harm to the public is great should the injunction not issue. CalTrans seeks to enact fencing blocking the illegal driveways from the North Parcel, which allow Plaintiff's heavy, slow moving vehicles and cranes to enter a freeway acceleration lane where vehicles are driving at high speeds while attempting to enter the highway. CalTrans asserts that this creates an extreme, immediate hazard, which CalTrans is statutorily compelled to correct and safeguard under Government Code Section 835 which governs liability for "dangerous condition of public property." CalTrans puts forth evidence that Transportation Engineer, Mr. Mario Orso, observed, analyzed, and determined that the North Parcel's driveways connected to SR 103 create a Dangerous Condition of Public Property. (Orso Decl. ¶ 7.). Mr. Orso declares as follows: the start of SR 103 at Willow Street is an onramp, which allows vehicles to accelerate at high speeds onto the highway. (Id., ¶ 8.) This particular highway has a unique volume of traffic because of the heavy machinery and oversized cranes that travel on SR 103. (Ibid.) The illicit driveways pose a unique danger in that "oncoming motorists exercising due care cannot anticipate or safely reach to a multi-ton crane slowrolling into their direct path." (Id. at ¶ 9)

The

Court finds that CalTrans has established that without the proposed fencing, there is a risk of high speed vehicular collisions, severe injury, or even death should the cranes in the North Parcel continue to slowly move into oncoming traffic. The Court agrees that the public safety interest overrides Plaintiff's interest in continuing to receive rental income from its subtenant in the North Parcel. CalTrans is also correct that while Plaintiff argues that continuous illegal use of the driveways along SR 103 provide Plaintiff a legal right to continue its use, there is no prescriptive easement against the State of California under California Civil Code Section 1007. Plaintiff concedes this as well: "Plaintiff does not contend that a prescriptive right can be acquired against a public entity, and does not rely on one." (Application, p. 13.)

Accordingly,
the balance of harms weighs in favor of denying the request for preliminary injunction.

CONCLUSION

Plaintiff's Motion for Preliminary Injunction
is DENIED.